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SHYLOCK BETWEEN EXCEPTION AND EMANCIPATION:
SHAKESPEARE, SCHMITT, ARENDT

This exploratory essay reframes some of the arguments and readings from my new book project, “thinking with Shakespeare,” which aims to define a mode of engaging with Shakespeare in a moment dominated by historicism and cultural studies.¹ “Thinking with Shakespeare” is in part a “return to theory” – to the universal concerns of philosophy, psychoanalysis, politics, and theology. I place Shakespeare’s plays in dialogue with texts and thinkers that come before and after the Renaissance, from Aeschylus, Aristotle and the Bible to Locke, Freud, and Benjamin. Both Hannah Arendt and Carl Schmitt make appearances on the scene of thought staged by this book. The conservative Catholic jurist, sometime-Nazi, and critic of pluralism seems worlds away from the young Zionist, defender of the Greek polis, and refugee from National Socialism. Yet both Arendt and Schmitt rigorously distinguished politics and society, whose rapid integration under modern liberalism they saw as a tremendous threat to the human condition. Both were, in this sense, early critics of what Foucault would call “biopolitics” – the absorption, economization, and management of human life under the increasingly administrative functions of the state, whether in its social-democratic or its totalitarian manifestations. Challenging the regime of biopolitics, both Arendt and Schmitt counterposed existentialist conceptions of the political. Arendt insisted that plurality, “the fact that men, not Man,... inhabit the world,” is “the condition ... of all political life,” since plurality requires narration, deliberation, and action (Arendt, *Human*

¹ This essay condenses and reframes materials from my book project, *Thinking with Shakespeare*, under contract with the University of Chicago Press. A related version of the Arendt argument has been published as “The Pearl Fishers: Thinking with Shakespeare and Arendt,” *Shakespeare International Yearbook* (2007), 253-279. See also the cluster of essays that I edited for this journal, under the rubric “Hannah Arendt’s Renaissance.” <http://www.jcrt.org/archives/07.2/index.html>. I would like to thank Oona Eisenstadt for organizing the conference in which I presented this particular framing of the citizenship problem in *Merchant*.

Condition, 7). Schmitt, on the other hand, reduced the essence of the political to the distinction between friend and enemy, a *collective* but most definitely not a *pluralist* situation in which groups adhere into cohesive bodies based on acknowledged antagonisms with another group. Although the deliberative pluralism of Arendt is fundamentally opposed to the hostile coherence of Schmitt, both attribute a strong existential power to politics that places them at odds with the privatized neutralities of official liberalism.

In the reading of *Merchant* that I frame in these pages, I associate Schmitt with *the exception*, with the singular decision of the sovereign concerning the state of emergency. I identify Arendt, on the other hand, with the *equivocalities of emancipation*, that is, with citizenship and its discontents. The climax of Act IV, Portia's ruling against Shylock, abandons the Jew in the traumatic field of the exception (this is the play's Schmittian moment). Rather than leaving him in this position of extreme exposure, however, the play goes on to translate him to a more normalized civic relation to Venice, not only restoring his limited privileges as resident alien, but also moving him towards fuller membership in the Venetian polity. Shylock's emergent citizenship, limited to economic participation, mortgaged by conversion to Christianity, and brokered under the threat of death, demonstrates what Arendt calls "the equivocalities of emancipation," the imperfect and ambiguous entry of Jews into European civic life.² In the incompleteness of Shylock's civic naturalization, however, lies his exemplary status for modernity. By manifesting the subjective split of thought that characterizes the conscience of ordinary men in their capacities as critical citizens, Shylock, rather than Antonio, may be the play's true Merchant of Venice, representing the mixed body politic of modernity in both the plurality of its constitution and its uneasy relation to the state of exception.³

1. Shylock, Schmitt, Exception

The Jewish community of Renaissance Venice was a complex federation of distinct liturgies and language groups (German and Italian, Levantine, and Spanish and Portuguese), a hybrid body or *Università* legally incorporated into the Venetian city-state. In its legal and religious variegation, the Venetian Ghetto epitomized the corporatism of the *ancien regime*. But Venice was also a republic, its constitutionalism documented and debated in various political writings of the

² Arendt, *The Origins of Totalitarianism*, third edition (New York: Harcourt, Brace, and World, 1966, 1968, 1973), 11-27.

³ Phillip Hansen glosses the significance of citizenship for Arendt: "the true citizen does not obey, because the notion of obedience is intimately associated with politics as rulership, a conception Arendt specifically challenges." With reference to Nazism, "the people most willing and able to resist these demands were not necessarily those who had highly developed intelligence or sophistication. Rather it was those who were able to think and judge for themselves." *Hannah Arendt: Politics, History and Citizenship* (Stanford: Stanford University Press, 1993), 198.

sixteenth and seventeenth centuries. The Duke or Doge of Venice was elected from the ruling noble families eligible for public office, and his main power was to serve *ex officio* on all the major committees; although elected for life, his residence in the Ducal Palace was considered temporary, and he had no power to redecorate!⁴ Moreover, as historian David Makiel has argued, the Jewish community in Venice, precisely because of its pluralism, adopted a federated structure, involving a council drawn from the different ethnic and liturgical groups, which then represented Jewish interests to the Venetian polity. Makiel argues that the federated structure adopted by the Venetian Jews in order to mediate their own internal differences was itself modeled in part on the constitution of Venice. Renaissance Venice was indeed, as sixteenth-century commentators pointed out, a “mixed constitution,” not only in its formal structure, but also in its incorporation of medieval and republican, as well as Jewish, Christian, and Muslim, citizenship groups and citizenship paradigms.⁵

Venetian constitutionalism takes two linked forms in Shakespeare’s play: the insistence on the rule of law and the consequent limitation of the Duke’s power. When the trial scene begins, we witness a civil case, involving two parties to a contract. In relation to this case, the Duke is a prince or *princeps* not in the sovereign sense of a supreme ruler, but in the limited sense of “first citizen,” either unable or unwilling to suspend the Venetian constitution in a civil suit. This remains the case up until the moment when Portia makes her final legal argument, enjoining the Duke in effect to declare a state of exception with respect to Shylock.

Carl Schmitt’s *Political Theology*, published in 1922, begins with the magisterial pronouncement, “Sovereign is he who decides the exception.”⁶ The *Ausnahmezustand* (state of exception, state of emergency) is that condition in which an extralegal act—the exception to the rule of law—serves to support and

⁴ On Renaissance Venice in English literature, see especially David McPherson, *Shakespeare, Jonson, and the Myth of Venice* (Newark: University of Delaware Press, 1990). On political structures and civil ritual in Renaissance Venice, see especially Dennis Romano, *Patricians and Popolani: The Social Foundations of the Venetian Renaissance State* (Baltimore: The Johns Hopkins University Press, 1987); Edwin Muir, *Civic Ritual in Renaissance Venice* (Princeton: Princeton University Press, 1981); and Oliver Logan, *Culture and Society in Venice, 1470-1790* (New York: Charles Scribner’s Sons, 1972). On the Jews of Venice, see Robert C. Davis and Benjamin Ravid, eds. *The Jews of Early Modern Venice* (Baltimore: The Johns Hopkins University Press, 2001); and Riccardo Callimani, *The Ghetto of Venice*, trans. K. S. Wolfthal (New York: M. Evans, 1987).

⁵ David Makiel. “The Ghetto Republic,” in *Jews of Early Modern Venice*, ed. Davis and Ravid, 117-42.

⁶ Schmitt, *Political Theology: Four Chapters on the Concept of Sovereignty*, trans. George Schwab (Cambridge: MIT Press, 1985), 5.

re-establish a constitutional order in crisis. The sovereign must step outside the law in order to preserve the constitution. Schmitt draws support for his definition of sovereignty from Jean Bodin, Samuel Pufendorf, and the natural law philosophers of the seventeenth century, effectively discovering the unity of sovereignty and exception in the period of the emergence of the absolutist state.⁷ Yet he writes within a constitutional moment—the Weimar Republic—to whose liberal constitution he found himself at least formally committed.⁸

In *The Concept of the Political*, published towards the end of the Weimar period, Schmitt reduces the political to the opposition between friend and enemy. “Friend” and “enemy,” he argues, have no content in themselves. Instead, they are terms of pure affiliation and disaffiliation, positions of antagonism that bind together the constituencies of one group, in opposition to another, on the existential plane of life and death:

The distinction of friend and enemy denotes the utmost degree of intensity of a union or separation, of an association, or dissociation. ...The political enemy need not be morally evil or aesthetically ugly But he is, nevertheless, the other, the stranger; and it is sufficient for his nature that he is, in an especially intense way, existentially something different and alien, so that in the extreme case conflicts with him are possible.⁹

According to Schmitt, the friend is not a character type, not a personality infused with a set of likeable attributes or elective affinities; the friend is simply the one with whom I throw my lot when together we face a common enemy. And the enemy is not a bundle of negative features, an embodiment of devilish villainy or ethnic monstrosity who could be identified as such according to a pre-established set of norms, but simply the collective other whom I oppose with my friends in a genuinely political situation.

Schmitt derives three distinct concepts of the enemy from the history of European international law. At the center of his thought is the *justus hostis* or just enemy, a category derived from Roman law and crucial to inter-European relations until the twentieth century.¹⁰ The just enemy, unlike the thief or

⁷ *Political Theology*, 14.

⁸ Bendersky associates him the group of conservatives known as *Vernunftrepublikanern*, “rational republicans” like Max Weber and Friedrich Meinecke who “sought the realization of conservatism within the new republican framework.” Joseph W. Bendersky, *Carl Schmitt: Theorist for the Reich* (Princeton: Princeton University Press, 1983), 58.

⁹ Schmitt, *The Concept of the Political*, trans. George Schwab (Chicago: University of Chicago Press, 1996), 27.

¹⁰ “*Hostes hi sunt, qui nobis aut quibus nos publice bellum decrevimus; ceteri latrones aut pradones sunt* [There are enemies, who declare war against us, or against whom we publicly declare war; others are robbers and brigands.]” Digest. De

brigand, declares and fights war by recognized conventions; he is my equal on the battlefield, and his opposition to me is largely devoid of ideological content. (The duel between two gentlemen is one model of the relation between *justi hosti*.) Schmitt charts two deviations from the *justus hostis*: the *perpetual enemy* of the medieval period, and the *just wars* of the twentieth century. In the medieval period, Christendom faced *perpetual enemies*: namely, the Jews and the Muslims. These enmity of these groups carried ideological content, but was not associated with a permanent or essential racial or moral character—hence the possibility of conversion among religions. The prospect of the *perpetual enemy* draws out and freezes the more temporary and relational antagonism of the *justus hostis* into a fixed opposition, deferring (but not completing removing) the element of equality and community among antagonists. *Perpetual enmity* is still not essential enmity, since the possibility of conversion as well as the fact of treaties, tributes, and other contractual agreements assumes a certain commutability among groups.

Finally, in the modern era, Schmitt sees the notion of *just war* dangerously replacing the notion of the *just enemy*. If my *cause* is just, then my enemy must be unjust—a criminal and a monster; both ugly and evil; essentially colored, that is, by ideology. A war fought in the name of humanity, Schmitt argues, “is necessarily unusually intense and inhuman because, by transcending the limits of the political framework, it simultaneously degrades the enemy into moral and other categories and is forced to make of him a monster that must not only be defeated but also utterly destroyed.”¹¹ Schmitt conveniently neglects to apply this logic to the machinery of anti-Semitism under the Third Reich. He is thinking instead of the forms of “total war” and “humanitarian intervention” that characterized violence among gentile Europeans in the twentieth century. Nonetheless, the relevance to anti-Semitism is striking, even (or especially) coming from Schmitt. Whereas the *perpetual enemy* belongs to the pre-modern regime of anti-Judaism and anti-Islam, the objects of just war—no longer enemies at all in Schmitt’s sense—represent exceptions to the order of the human as such, and are thus the targets of annihilation, not just conquest, conversion, or contract.

Othello travels a similar typology. The play’s background in medieval crusading literature codes the Turk as a “perpetual enemy,” while Othello’s own ability to switch between geopolitical regimes and religious confessions represents the non-essential character of the early modern friend-enemy distinction. Through

verborum significatione, cited by Schmitt, *The Nomos of the Earth in the International Law of the Jus Publicum Europaeum*, trans. G.L. Ulmen (New York: Telos Press, 2003), 51.

¹¹ *Concept of the Political*, 36. Schmitt elaborates the fundamental antagonism between the *justus hostis* of traditional international law (Roman and European) and the *justa causa* of twentieth century warfare, *Nomos of the Earth*, 320-22.

the ideological machinations of Iago, however, both the “perpetual” and “just” enemies of medieval and Renaissance law begin to disappear into the moral, aesthetic, and culturalist quagmire of “just war” language, which funds its humanitarian interventions by criminalizing, outlawing, and monsterring the enemy.

In *Merchant*, the most pertinent use of the word “enemy” occurs in Antonio and Shylock’s encounter in Act One. Shylock reminds Antonio of his former treatment of him:

You call me misbeliever, cut-throat dog,
And spit upon my Jewish gaberdine,
And all for use of that which is mine own. (I.iii.106-8).

Antonio doesn’t flinch:

I am as like to call thee so again,
To spit on thee again, to spurn thee too.
If thou wilt lend this money, lend it not
As to thy friends; for when did friendship take
A breed for barren metal of his friend?
But lend it rather to thine enemy,
Who, if he break, thou mayst with better face
Exact the penalty. (I.iii.125-32)

Antonio makes no pretence of friendship with Shylock, a term he reserves for his Venetian entourage. We are shocked by Antonio’s frank use of the language of enmity, which would seem to either belie the merchant’s Christianity, or reveal a contradiction within it. Yet Antonio would probably concur with Schmitt that the Christian commandment to “Love thy enemies” does not apply to Jews or Muslims:

No mention is made [in the Gospels] of the political enemy. Never in the thousand-year struggle between Christians and Moslems did it occur to surrender rather than defend Europe out of love toward the Saracens or the Turks. The enemy in the political sense need not be hated personally, and in the private sphere only does it make sense to love one’s enemy, i.e., one’s adversary.¹²

To call Shylock his enemy – or rather, more precisely, *to enjoin Shylock to recognize Antonio as enemy* (proper enmity for Schmitt always involves mutual recognition) – is not to engage in an uncontained war, but rather to accept certain rules of engagement, including the contract itself, as the proper means of interaction where no friendship prevails. Antonio plants himself firmly within the discourse of the *perpetual enemy*: from his perspective, the circle of friendship is closed to Shylock qua Jew, but that does not mean they subsist in a state of emergency, a war of all against all. The norms of law still govern their

¹² *Concept of the Political*, 29.

interaction; the war between them is, to use another phrase from Schmitt, “bracketed,” deferred and legalized through recognition and procedure. (Antonio, does however, appear to “hate Shylock personally,” a factor Schmitt fails to exclude completely from the scenario, leaving an anti-Semitic door unlocked within the anti-Jewish regime.)

Portia’s ruling proceeds to “unbracket” the war between Jew and Christian, Antonio and Shylock. Recall her final argument:

The law hath yet another hold on you.
It is enacted in the laws of Venice,
If it be proved against an alien
That by direct or indirect attempts
He seeks the life of any citizen,
The party ‘gainst the which he doth contrive
Shall seize one half his goods; the other half
Comes to the privy coffers of the state,
And the offender’s life lies in the mercy
Of the Duke only, ‘gainst all other voice.
Down, therefore, and beg mercy of the duke. (IV.i.345-61)

Whereas before, Shylock and Antonio had both stood within the civil law, Portia now places Shylock outside the law, as its exception. She has identified Shylock, in Schmitt’s phrase, as “existentially something different and alien.” The term “alien” here, in both Portia’s and Schmitt’s discourses, is a juridical, not a moral or biological term. Portia draws the line between alien and *citizen*, not between human and subhuman, demonstrating her membership in early modern, not twentieth-century, emergency law. Nonetheless, “alien” has shifted from *resident alien*, a member of the incorporated Jewish community, to something like a *stateless alien*, stripped of privileges and immunities. Portia has in effect declared a state of emergency. It is an exorbitant moment in the drama, insofar as Portia’s judgment strips Shylock of all rights, destroying his juridical personhood. Moreover, at this moment Portia hands to the Duke, previously subject to the constitution of Venice, the sovereign power of life and death over Shylock. For one horrible moment, the Doge becomes Il Duce, a dictator who stands above the law in a state of legal exception. Or, to put it in more moderate terms, we could say that Portia plays Schmitt to the Doge’s Hindenburg, offering him legal advice on how and when to expand his powers without abrogating the constitutional bases of the Republic. The Doge, she argues, must take exception to civil law because Shylock himself has become an exception to the norms of his own limited incorporation into the polity. Life is a key term in these transformations. By posing a threat to the life of Antonio, Shylock’s own life is now subject to the Duke’s decision.¹³

¹³ Again, Schmitt is pertinent: “The friend, enemy, and combat concepts receive

Shakespeare's Doge is too much of a constitutionalist for this, and he throws back sovereign power almost as soon as Portia delivers it to him. He pardons Shylock's life before he asks for it, and he also returns almost half of Shylock's wealth, leaving the other half at Antonio's disposal. Shylock, however, is unimpressed; when you take my money, he says, you also take my life; life without money is no life at all. Antonio responds with a new bargain: half for Shylock, half for Antonio, but all of it ultimately for Jessica and Lorenzo—on condition, however, that Shylock converts to Christianity. If the Duke had in effect restored Shylock's condition from *stateless refugee* to *resident alien*, in possession of a limited set of civil rights along with active membership in a self-governing incorporated body, Antonio begins to move Shylock from the limited citizenship of the permanent resident to fuller membership in Christian Venice. To understand Antonio's deal, and Shylock's response, we need to turn from Schmitt to Arendt.

2. Shylock, Arendt, Emancipation

The first section of *The Origins of the Totalitarianism*, written during roughly the same period as Schmitt's *Nomos of the Earth*, is entitled "Emancipation and Its Equivocalities." Whereas Marx in "The Jewish Question" uses the word emancipation to describe the broadest possible realization of human freedom, Arendt uses the term in a much more restricted sense: namely, the granting of citizenship rights to the Jews by the European nation-states, an act that also simultaneously required the dissolution of the incorporated Jewish communities of the *ancien regime*.¹⁴ Jewish emancipation began with the French Revolution and rippled unevenly throughout western Europe over the course of the nineteenth century, ending with the juridical destruction of Jewish citizenship by the Nuremberg Laws in 1935. Arendt had already left Germany for France in 1933; she remained a "stateless person," without citizenship rights, from 1933 to 1951.¹⁵ *The Origins of Totalitarianism* was published in 1951, in the English language, the same year that Arendt herself became a U.S. citizen. The book can be read as Arendt's citizenship papers, a document composed in her adopted language that addresses the perplexity and promise of citizenship as a political project.

The "equivocality" of Jewish emancipation rested for Arendt in the contradiction between the political definition of citizenship (founded on civic participation in a national entity) and the apolitical praxis of Europe's new Jewish citizens. The

their real meaning precisely because they refer to the real possibility of physical killing. War follows from enmity. War is the existential negation of the enemy." *Concept of the Political*, 33.

¹⁴ For another history of this process, see Oskar Jankowski, *The Jews and Minority Rights, 1898-1919* (New York: Columbia University Press, 1966).

¹⁵ Elisabeth Young-Bruehl, *Hannah Arendt: For Love of the World* (New Haven: Yale University Press, 1982), 113.

failure of the Jews to become genuinely political was, in Arendt's analysis, a key factor in the catastrophe suffered by European Jewry in the twentieth century. Yet Arendt by no means rejects the political goal of emancipation as such, which should be distinguished here from assimilation. *Assimilation* (connoting conformist absorption into a host culture) represented both a loss and a lure, but *enlightenment* (with its sense of philosophical ascription to universal principles) introduced, at least in Arendt's judgment, a definitive gain. Arendt's own life and thought is clearly marked by the considerable transformations in the social and intellectual life of the German Jewish bourgeoisie that emancipation had initiated.

Antonio's deal speaks of conversion, not of citizenship. The idea of "conversion," however, with its religious emphasis, hides behind it a set of juridical transformations. Whereas we understand the word "conversion" to indicate a spiritual, emotional, and personal turn from one religion to another, conversion in the Renaissance context would also have entailed a fundamental shift in relationship to the incorporated Jewish community. Residence in Venice as a member of the Jewish *Università* implied a whole set of social supports, responsibilities and roles in relation to the Ghetto, the Venetian polity, and other national and supranational instances and networks. *Conversion* of necessity implied some process of *naturalization*, of becoming-citizen in the Christian commonwealth; otherwise, conversion would create statelessness, or more accurately, estateless-ness, masterless men without a fixed estate or status in the corporate municipality. Thus a Papal Bull of 1542 urging the active conversion of the Jews stipulated that converts be made citizens of the place in which they were baptized (Pullan *Jews of Europe* 252). Blake de Maria, in a forthcoming art-historical study of immigration in Venice, suggests that Shylock, as a convert, would have joined the larger group of the Venetian *popolani*, but would not have become a formal citizen.¹⁶ As a *converso* he would likely have enjoyed wider economic, social, and marital mobility than his unconverted counterparts. Although critics of the play since 1945 have been almost unanimous in their depictions of Shylock's fundamental exclusion at the end of the play, it is important to note that this exclusion occurs via an act of formal integration, including the preservation of a portion of Shylock's livelihood along with a presumed expansion of his sphere of economic activity. In the period extending beyond the close of the play, and never imagined by it except perhaps in the open letter of its title, Shylock may indeed become, like so many of his "New Christian" compatriots, a Merchant of Venice.¹⁷

¹⁶ Blake De Maria, *Becoming Venetian* (forthcoming, Yale University Press). I would like to thank the author for sharing her argument with me ahead of press.

¹⁷ In her notes on the Lopez plot, Lilian Winstanley, an "old historicist" critic whom Schmitt uses in his essay on *Hamlet*, states that the wealthy Spanish merchant Don Antonio, purportedly targeted along with Queen Elizabeth, was himself the son of a *conversa*. Winstanley cites Boas, *Shakespeare and His*

Several features render Shylock's "emancipation" "equivocal." These equivocalities are necessarily distinct from those detailed by Arendt on the other side of the French Revolution, but they share the same fundamental non-commutativity between economic and political participation, between passive and active citizenship, or between what Arendt calls "life" and "politics." *First Equivocality*: any citizenship acquired by Shylock would be at best partial. He will never join the inner circle of ruling families that constituted Venice's aristocratic republic, and thus never achieve political participation, except through his daughter. *Second Equivocality*: Shylock does not so much become a citizen of Venice as leave one form of citizenship – participation in the incorporated Jewish community – for another form of citizenship, entailing some form of social and economic membership in the Christian commonwealth. Emancipation *into* Christian citizenship is simultaneously emancipation *from* Jewish citizenship; there is no formal recognition of plurality (although some form of *de facto* plurality must surely result from such a movement.) And finally, the element of force or coercion accompanying this conversion undermines its legitimacy. By continuing to threaten Shylock with death, the Duke keeps the state of emergency in effect, despite the apparent move into constitutional normalization. The iteration of the death threat marks Shylock *as an exception*, even while purporting to integrate him into the public sphere; and it manifests the continued *force of force* in constituting the law, despite the move back into apparent normalcy.

When Shylock does respond to Antonio's deal, it is with the simple statement, "I am content" (IV.i.390). The word "content," appearing three times in the passage, rhymes with "consent," a key word in theories of political obligation. In Arendt's language, we would say that Shylock *consents to emancipation* (that is, to conversion-as-naturalization), but *his consent is equivocal*. When Shylock requests, "I pray you give me leave to go from hence, / I am not well" (IV.i.391-2), Shakespeare indicates just how equivocal—how riddled by discontent—Shylock's stated contentment must be. We anticipate a less than full entry into both Christian fellowship and Venetian citizenship for Shylock. In this discontent, he remains at odds with Jessica, who has achieved a more complete, but also a more profligate, covenanting with Venice. Jessica marries into both Christianity and citizenship, rescinding her Judaism in favor of a new Christian-civic synthesis sealed in the rite of marriage. Although Shylock, like Jessica, must also leave his Judaism at the gates of the city, unlike Jessica he remains both single and singular. Jessica exemplifies what Arendt calls the *parvenu* – the Jew whose anxiety to conform with Gentile society prevents any solidarity with her fellow Jews, and thus jettisons any project that would unite the Jews as a political

Predecessors. Lilian Winstanley, *Hamlet and the Scottish Succession*. 1921 (Rpt. New York: Octagon Books, 1970), 13. Schmitt develops Winstanley's Hamlet interpretation in *Hamlet oder Hekuba: Der Einbruch der Zeit in das Spiel*, 1959 (Rpt. Stuttgart: Klett-Kotta, 1985).

bloc. Shylock's discontented conversion, on the other hand, suggests the political potential of the pariah, a *naturalized*, but never a *natural*, citizen.¹⁸ Shylock's discontented consent marks a reserve of Jewishness on Shylock's part, a fund of political identification with the Jews, in and for the civic order that he provisionally joins.

Of course, we can read Shylock's consent to conversion as a purely cynical move on either Shakespeare's part or on behalf of the Venetian polity in the play. Shylock's consent normalizes and legitimates the exorbitance of the Doge's movement into the space and time of exception, suturing the excess of sovereignty opened up by the act of pardoning. In the process, consent as a political factor is itself bankrupted by the play, shown to be a fiction produced by and for the preservation of the status quo. But doesn't Shylock, like Isabella at the end of *Measure for Measure*, also come to stand in for the social contract as such? *Measure for Measure* may enact the marital analogy that supports royalist images of political union, yet it does so by disclosing the act of consent at its heart. If indeed Isabella accepts the Duke's proposal, she will inject a series of political positions and possibilities into the civic sphere she joins. These include rights of petition and redress, powers of de-affiliation and re-affiliation, and a tested and expanded notion of consent itself. Similarly, by consenting with such reserve, Shylock brings forward the political lining of religious conversion, forcefully embodying the ethnic and religious plurality of Venice. And by consenting only under pressure, he forces the state to reveal the power in its hand. In my reading, Shylock's consent to citizenship, like Isabella's reserved consent to marriage, does not debunk *civitas*, but rather holds it accountable to its universal claims. In both cases, Shakespeare's problem characters enter into, but also begin to rezone, the civic spheres they grudgingly join. They give something up, but they also effect a change. And they do so by worrying different strands of the discourse of citizenship.

What, then, do Schmitt and Arendt tell us about the concept of the political in this play? Schmitt helps us disclose the different fronts and faces of enmity, as a juridical rather than psychological category, that Shylock bears in Venice. Arendt's discussion of emancipation and its equivocalities invites us to revalue without endorsing Shylock's conversion to Christianity by understanding its political potentialities as well as its inherent limitations. Both figures, moreover, help us stake out some strategic border crossings between politics and theology in Shakespearean drama. The figure of the *perpetual enemy*, grounded in the intransigent yet traversable divisions among the three monotheisms, exists at the interface between international law and theology. Emancipation and conversion

¹⁸ In Arendt's words, the willed or conscious pariahs "get in exchange for their unpopularity one priceless advantage: history is no longer a closed book to them and politics is no longer the privilege of the gentiles." "We Refugees" in *Hitler's Exiles: Personal Stories of the Flight from Nazi Germany to America*, ed. Mark M. Anderson (New York: New Press, 1998), 253-262, 262.

flow along the same moebius strip formed by juridical and religious discourses in the West. Through both Schmitt and Arendt, we can begin the work of conceptualizing Shylock's *political* significance for modernity—not as the scapegoat of modernity, but as its uneasy citizen-subject. As for Schmitt and Arendt as our interlocutors? It's best to keep the first as our enemy, and the second as our friend, but to engage both in researching the genealogies and destinies of these positions.

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